



File No.: EXP202209784

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On August 11, 2022, a complaint was filed with registration number REGAGE22e00035032919 with the Spanish Agency for Data Protection against LEAST COST ROUTING TELECOM, S.L. with NIF B82470162 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant presents a complaint for receiving commercial calls on their mobile line ***PHONE.1 between July 5 and August 8, 2022, from various calling lines. The receiving line has been registered in the Robinson List since June 15, 2016.

Along with the notification, the following documents are submitted:

- Certificate proving the registration of the receiving line in the Robinson List.
- Telephone bill proving the ownership of the receiving line.
- Screenshots justifying the receipt of commercial calls.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on September 28, 2022, as stated in the acknowledgment of receipt in the file.

On October 11, 2022, a response was received by this Agency indicating:

"We have proceeded to review our call registration system (HEOS) (Redmine with code number XXXX) on 08/08/2022 from the line ***PHONE.2 and from the line ***PHONE.3 on 09/08/2022, which are assigned to LEADDESK, S.L., and there is no record of any call made to the number ***PHONE.1."

"We have communicated the complaint to LEADDESK, S.L. and to NET VOISS, S.A.C. so that they can contact their clients (Subscribers to the affected lines) to review their databases, identify if they have the number ***PHONE.1, and in the case of the Subscriber:

1. Proceed to transfer the number ***PHONE.1 to a "Do Not Call List," keep it blocked for 2 years on that list, and remove it from the database used for commercial calls.
2. Henceforth refrain from making new calls to this number and, as indicated in the previous point, be blocked for the defense against possible complaints filed by the person who has informed us that they received unsolicited calls, before the Spanish Agency for Data Protection.
3. Confirm that they have complied with the instructions in points 1 and 2.
4. Confirm that the subscribing company has transferred the recipient number of the reported commercial calls to a "Do Not Call List," keeps it blocked for 2 years on that list, and thereafter removes it from the database used for commercial calls; or, if applicable, that they have communicated this to third parties to whom they have entrusted commercial actions and from whom this number may have been included in the database they are using for commercial calls."

"From LEAST COST ROUTING TELECOM, S.L., we do not have information concerning the processing of personal data linked to the telephone numbers receiving commercial calls, such as the consent of the affected party, the origin of the personal data of the affected person, and the manner of obtaining them; or any other information linked to the telephone numbers receiving commercial calls that are not traffic data of calls (Line making the call, recipient number of the call, date of the call, and duration of the call) solely for the purpose of managing the billing that Resellers or Dealers carry out to their clients/Subscribers who are the ones actually making the calls and can provide this type of information."

THIRD: On October 28, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was

admitted for processing.

FOURTH: The General Subdirector of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU)

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2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATION ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the same complainant, it is known that the operators of the originating numbers of the calls were:

***PHONE.4 LEADDESK, S.L.

***PHONE.2 LEADDESK, S.L.

***PHONE.3 LEADDESK, S.L.

***PHONE.5 NET VOISS, S.A.C.

***PHONE.6 LEADDESK, S.L.

***PHONE.7 VOXBONE, S.A.

***PHONE.8 VOXBONE, S.A.

***PHONE.9 VOXBONE, S.A.

***PHONE.10 R CABLE Y TELECOMUNICACIONES, S.A.U.

In reference to the complained number ***PHONE.4:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEADDESK -> UPMOBILE SOLUTIONS SL

LEADDESK confirms the emission of the call; however, MOVISTAR indicates that it has no record of receiving it.

A request was sent to UPMOBILE SOLUTIONS SL on 21-03-2023, which expired due to NOTIFICA. A reiteration was sent by certified postal mail on 12-05-2023, with acknowledgment date of 15-05-2023, and no response has been received as of the date of drafting this report.

In reference to the complained number ***PHONE.2:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEADDESK -> UPMOBILE SOLUTIONS SL

LEADDESK indicates that there was an attempt to call on the specified date. MOVISTAR indicates that it has no record of receiving it.

A request was sent to UPMOBILE SOLUTIONS SL on 21-03-2023, which expired due to NOTIFICA. A reiteration was sent by certified postal mail on 12-05-2023, with acknowledgment date of 15-05-2023, and no response has been received as of the date of drafting this report.

In reference to the complained number ***PHONE.3:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEADDESK -> UPMOBILE SOLUTIONS SL

LEADDESK indicates that there was an attempt to call on the specified date. MOVISTAR indicates that it has no record of receiving it.

A request was sent to UPMOBILE SOLUTIONS SL on 21-03-2023, which expired due to NOTIFICA. A reiteration was sent by certified postal mail on 12-05-2023, with acknowledgment date of 15-05-2023, and no response has been received as of the date of drafting this report.

In reference to the complained number ***PHONE.5:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

NETVOISS -> COMERCIALIZADORA SYR CENTER 2020, C.A. (Venezuela)

NETVOISS confirms the making of the call.

MOVISTAR indicates that it has no record of receiving it.

A request was sent by international certified mail to COMERCIALIZADORA SYR on 22-02-2023, requesting the reason for the calls; no response or acknowledgment of receipt has been received.

In reference to the complained number ***PHONE.6:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEADDESK -> SAMPER-SAMPEDRO SL

LEADDESK indicates that there was an attempt to call on the specified date. MOVISTAR confirms the receipt of the call.

SAMPER-SAMPEDRO SL indicates (date 26/04/2023 and registration number REGAGE23e00026833153) that the line has been active under the ownership of LEADDESK S.L. in the company LEAST COST ROUTING TELECOM S.L. and indicates that SAMPER-SAMPEDRO signed a service provision contract whereby it provided a telephone CRM service.

On 11-05-2023, a new request was sent to SAMPER asking for the reasons for the calls and the contractual relationship with the complainant; this request has acknowledgment of receipt on 16-05-2023, and as of the date of drafting this report, no response has been received.

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In reference to the claimed number ***PHONE.7:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

VOXBONE -> STG COMPANY (Peru)

Voxbone indicates that they do not identify any outgoing calls and it could be a case of spoofing.

MOVISTAR indicates that they have no record of receiving this.

A request was sent by international certified mail to STG COMPANY on 07-03-2023, requesting the reason for the calls, which has a delivery receipt dated 14-03-2023, and no response has been received.

In reference to the claimed number ***PHONE.8:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

VOXBONE -> STG COMPANY (Peru)

Voxbone indicates that they do not identify any outgoing calls and it could be a case of spoofing.

MOVISTAR indicates that they do have a record of receiving this.

A request was sent by international certified mail to STG COMPANY on 07-03-2023, requesting the reason for the calls, which has a delivery receipt dated 14-03-2023, and no response has been received.

In reference to the claimed number ***PHONE.9:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

VOXBONE -> STG COMPANY (Peru)

Voxbone indicates that they do not identify any outgoing calls and it could be a case of spoofing.

MOVISTAR indicates that they have no record of receiving this.

A request was sent by international certified mail to STG COMPANY on 07-03-2023, requesting the reason for the calls, which has a delivery receipt dated 14-03-2023, and no response has been received.

In reference to the claimed number ***PHONE.10:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

R CABLE Y TELECABLE TELECOMUNICACIONES S.A

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R CABLE responds that this number did not belong to any holder of that company as of the requested date and that there is no record of such a call.

MOVISTAR indicates that there is no record of receiving such a call.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued for its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Final provision sixth, section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette'. Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

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Through the investigations carried out by this Agency, it has been determined that:

Regarding the numbers ***PHONE.3, ***PHONE.4, and ***PHONE.2, it cannot be concluded what the reason for the calls was, as the final holder UPMOBILE SOLUTIONS SL did not respond to the initial request for information, which has expired, nor to the reiteration whose acknowledgment of receipt is dated 15/05/2023, making it impossible to determine that it is the final responsible party for the claimed calls.

Therefore, the principle of the presumption of innocence prevents attributing an administrative infraction when no evidence has been obtained and verified that substantiates the facts that motivate the accusation or the involvement of the alleged infringer in them.

Regarding the number ***PHONE.5, it cannot be concluded what the reason for the calls was, as the

final holder COMERCIALIZADORA SYR CENTER 2020, C.A., located in Venezuela, did not respond to the request for information, making it impossible to determine that it is the final responsible party for the claimed call.

Additionally, it should be noted that this Agency does not have jurisdiction over companies located in Venezuela.

Regarding the numbers ***PHONE.7, ***PHONE.8, and ***PHONE.9, it cannot be concluded what the reason for the calls was, as the final holder STG COMPANY, located in Peru, did not respond to the request for information.

The calling entity corresponds to a company located in Peru, for which no representative has been located in the European Union; therefore, it should be noted that the LGT does not confer the Spanish Agency for Data Protection jurisdiction over a company located in Peru.

Regarding the number ***PHONE.6, LEADDESK, SL indicates that the final holder is SAMPER-SAMPEDRO SL, who in their response to the request for information indicated that they had signed a contract with LEAST COST ROUTING TELECOM S.L. for the provision of telephone CRM services. With this assertion and the confirmation of the call by the complainant's operator, it can be concluded that the reason for the call was to offer telephone services on behalf of the accused.

Regarding the number ***PHONE.10, the holder of the same, R CABLE Y TELECABLE TELECOMUNICACIONES S.A., indicates that the line was not assigned and there is no record of its reception or emission.

With very high probability, this line was subject to CLI spoofing or telephone spoofing (which is a way to mask the identity of companies or individuals by changing the number that appears on the caller ID, using the number to make it seem like another company or person is calling). Thus, it cannot be determined who made the calls and who is responsible for them.

Therefore, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to LEAST COST ROUTING TELECOM, S.L. and to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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